

If Defendants turn out to be correct, and the *Gibson* PAGA Settlement does apply to the claim in this matter, then the 'material times' allegations will be read to be limited to dates outside the scope of the *Gibson* PAGA Settlement. There is no need to have specific dates within the complaint to accomplish this goal.

Kelly Bozarth Allegations

The Court sustained Defendant Bozarth's demurrer to the Complaint. As such, her motion to strike is denied as moot.

Conclusion

Defendants' motion to strike is **denied**.

21. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
TENTATIVE RULING:

This matter has been continued to September 17, 2026 at the parties' request.

22. 9:00 AM CASE NUMBER: N25-0895
CASE NAME:
***HEARING ON MOTION IN RE: DISQUALIFY DEFENSE FIRM**
FILED BY: ADCOCK, JAMES
TENTATIVE RULING:

The Court received a communication from Counsel for the moving party that the Notice of Motion with the hearing date had not been served and requesting a continuance. The Court did not receive any further documentation. Given, however, that it appears that the Motion was not properly served, it has been continued to August 13, 2026 at 9:00 am. Petitioner is ordered to serve notice of this amended hearing date. Opposition is due no later than July 31, 2026 and any Reply is due no later than August 6, 2026.

Discovery Law & Motion

23. 9:01 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
***HEARING ON MOTION FOR DISCOVERY SANCTIONS AGAINST DEFENDANT TRIGMAX SOLUTIONS, LLC**
FILED BY: YUE, DONGXIAO
TENTATIVE RULING:

This case has been litigated for years, with shifting representations, multiple appeals—including one pending—and a series of troubling accusations in both directions. Before the Court today is Plaintiff Dongxiao Yue's Motion for Sanctions against Defendant Trigmax Solutions. Trigmax filed a late opposition, dated and received by the Court on July 13, which is one court day after it was due.

The Court will not recite all of the years of history and all of the sordid details at issue. What the Court will note, at start, is that counsel for Trigmax has wholly failed to act professionally. Throughout correspondence with Plaintiff Yue, counsel William Pohl makes reference to Yue as delusional: (1) "I suspect your aluminum hat has fallen off"; (2) "your level of conspiracy theory is amazing. For an explanation on foil hats, try Wiki. Weird Al Yankovich has a GREAT song on them called 'Foil.'"; (3) "If you spent half on your psychiatric treatment what you spend on this case, you would be healed." These types of communications, especially from an attorney to an unrepresented party, are entirely outside the bounds of ethical conduct. Counsel Pohl is reminded that even though he has relocated out of state, he is bound by California rules of professional conduct, including, but not limited to Rule 8.4.1.

On the meat of the matter, Yue has a large number of complaints about various defaulted, defunct, and current defendants' actions. The Court will not be addressing the truth of discovery responses. Whether they are false and inaccurate is for trial or at least an evidentiary hearing. The Court addresses the core request for \$60 in sanctions relating to Trigmax's violation of the Court's order to provide supplemental responses without objection. To that, Trigmax had no response. The Court grants this request.

Additionally, Yue seeks discovery relating to any involvement of counsel in misrepresentations relating to ownership of defaulted Defendant Yeyclub. Trigmax's response meanders about but never truly addresses the core concern. Trigmax is correct that administrative rights to a website may very well be different in important ways from ownership for legal purposes. Trigmax may also be correct that Yue is confused about the distinction. But Trigmax's only other response is that the issues of falsified declarations has been previously addressed is not borne out by the exhibits. In 2018, Yue appears to have refused to participate in discovery referee processes and declined to address jurisdictional issues. Trigmax appears to have failed to pay the discovery referee. The referee asked to be relieved. Yue will be permitted discovery related to the narrow issue of the declarations of November 7, 2018, November 13, 2018 and the identity of Wei Yang as known by Counsel Pohl from 2017-2019.

Additionally, Counsel Pohl is advised that any further improper communications may result in sanctions, including a report to the California State Bar.

After ten years, it is time for the parties to finally resolve this dispute. That cannot happen without compliance with the rules and improved behavior.

Law & Motion
Add On

24. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Defendant Desiree Denard's Motion for Summary Judgment is **granted**. Defendant shall prepare the order and file and serve notice of entry of order.

Background

Plaintiff filed this action on March 8, 2022. The operative First Amended Complaint, filed February 5, 2026, asserts causes of action for violation of Civil Code section 1708.85, invasion of privacy, and intentional infliction of emotional distress, along with a claim for punitive damages.

On January 30, 2018, Plaintiff Lavon Godfrey ("Plaintiff") sent Defendant Desiree Denard ("Defendant") a video of Godfrey masturbating via private Facebook message. (Defendant's Separate Statement of Undisputed Material Facts ("SSF") No. 1.) Plaintiff shared the video with only Denard. (SSF No. 2.)

Defendant contends that, on that same day, she shared the video with three family members, including Toni Denard, Chanee Denard, and Timoya Jones, and with no one else. (SSF Nos. 3-4; Denard Decl. ¶¶ 5-6.) This is disputed. Plaintiff contends Defendant created and used a Facebook group chat as a distribution channel that facilitated broader circulation, that this is corroborated by a third-party witness (Toni Denard), and that Defendant's disclosure was motivated by a rent-money dispute. (SSF Nos. 3-4 and Godfrey's Response.) Plaintiff's response to SSF No. 3 does not dispute that Defendant shared the video with the three named family members; rather, it disputes whether dissemination was limited to that group.

On February 3, 2018, Plaintiff texted Breyahanna Roger stating that she had sent the video to Denard, that she had instructed Defendant to delete it, and that Defendant had shared it with Chanee Denard and another family member. Plaintiff wrote that she intended to "send my niece to jail" and sue. (SSF No. 5.) On February 16, 2018, Oakland comedian Jerry Law was already discussing the video. (SSF No. 6.) On April 14, 2018, Plaintiff publicly reposted a comment attributing the video's spread to Chanee Denard and identifying "Lucky Dollaz" (Jerry Law) as a further distributor. (SSF No. 7.)

Plaintiff requested an apology from Jerry Law after learning the video had been shared, "as part of an